

The elements for a breach of contract claim are: (1) a contract; (2) plaintiff's performance or excuse for nonperformance; (3) breach; and (4) damages. (*Wall Street Network, Ltd. v. N. Y. Times Co.* (2008) 164 Cal.App.4th 1171, 1178.)

Here, Plaintiff meets its initial burden. Defendant applied for and was issued a Wells Fargo credit card. (UF no. 1.) Defendant used the credit card. (UF no. 6.) Plaintiff sent monthly billing statements. (UF no. 7.) Defendant's last payment was 1/19/24 with no other payments. (UF no. 11-12.) There remains an unpaid balance of \$19,215.26. (UF no. 13-14.) Defendant failed to oppose the motion. The is GRANTED. Court to sign the proposed order and the proposed judgment.

5.

CASE #	CASE NAME	HEARING NAME
CVME2600103	GRAVITAS GOLDENS LLC VS LADEVEZE	MOTION TO COMPEL TURNOVER OF PROPERTY

Tentative Ruling: The court signed the turnover order on May 14, 2026. However, there is a motion to vacate court dates including this June 18, 2026 court date. There may be an appellate ruling that has remanded this case back to superior court. Therefore, this hearing is off calendar.